

Important Information for Tentative Rulings and Hearings:

1. Please review and follow the Tentative Ruling Instructions which can be found on the Court's website using the following link: <https://sf.courts.ca.gov/divisions/unified-family-court/ufc-tentative-rulings>.
2. If you wish to make an objection to the Tentative Ruling in your case, you must notify the other party (unless there is a restraining order in place) and the Court Clerk in the Department where the hearing is scheduled of your objection by 4:00 PM the Court day prior to the hearing date. Court days do not include Court holidays, Saturdays, or Sundays. The Court's Holiday Schedule can be found on the Court's website using the following link: <https://sf.courts.ca.gov/general-information/holiday-schedules>.
3. To contact the Court Clerk in Dept. 403 to make an objection to the Tentative Ruling in your case, please call (415) 551-3741 or send an email to Department403@sftc.org.
4. To contact the Court Clerk in Dept. 404 to make an objection to the Tentative Ruling in your case, please call (415) 551-3744 or send an email to Department404@sftc.org.
5. To contact the Court Clerk in Dept. 414 to make an objection to the Tentative Ruling in your case, please call (415) 551- 3756 or send an email to Department414@sftc.org.
6. When you contact the Court Clerk to make an objection to the Tentative Ruling in your case, please specify the paragraph(s) and / or line number(s) of the Tentative Ruling which contains the language to which you object.
7. You may appear at your hearing either (a) in-person; (b) by video; or (c) by phone. Pursuant to SFLR 11.7(D)(4), if you choose to appear by video or phone, you must be continuously connected to Zoom from 8:50 a.m. until 12:00 p.m. or until your hearing is concluded (or from 1:20 p.m. until 4:30 p.m. or until your hearing is concluded, if your hearing is scheduled to start at 1:30 p.m.). If you fail to appear in-person, by video, or phone, the Court may proceed with the hearing in your absence. The Court is not required to contact you before your hearing.
8. If you choose to appear by video or by phone, you must comply with the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth below.

**SAN FRANCISCO SUPERIOR COURT
UNIFIED FAMILY COURT
NOTICE AND INSTRUCTIONS FOR REMOTE APPEARANCES**

You may appear at your court hearing either (1) in-person or (2) remotely by video or telephone. If you fail to appear in-person or remotely by video or telephone, the court may proceed with the hearing in your absence. **The clerk will NOT contact you.** Remote appearances by video or telephone can be made utilizing the **ZOOM** platform, **effective January 2, 2024:**

- If you are *joining by video*, go to www.zoom.com/join and follow the instructions below:
 - Type in the Meeting ID (*see below for department Meeting IDs and Passcodes*) and click "Join".
 - Click "Launch Meeting" then "Open zoom.us".
 - Zoom will launch and you will be asked for the Meeting Passcode. *Enter the passcode for your Meeting ID for the respective department for your court hearing.*
 - Enable your camera and click "Join".
 - Once you join, a prompt to use computer audio will appear, click "Join with Computer Audio".
 - **Enter your full first and last name TO IDENTIFY YOURSELF TO THE COURT.**
 - Using headphones may help you hear more clearly.
- If you are *joining by phone*, dial 1-(669)254-5252 or 1-(669)216-1590 and enter the Meeting ID and Passcode as described below.

Department 403
Meeting ID: 161 463 0304
Passcode: 114482

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1614630304?pwd=OTZ1cVZaQlRYWXPfQ2hTaEFuZnhIZz09>

Department 404
Meeting ID: 161 305 3325
Passcode: 282709

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1613053325?pwd=SkdXWGVkQkowckJSNnJwSSStYkR6dz09>

Department 414
Meeting ID: 161 123 0725
Passcode: 040696

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1611230725?pwd=d1JPVDZmSEZTMlpuODhJVTZ4ZE1FZz09>

When you join the hearing on Zoom:

1. **You are to mute your audio when you are not speaking.**
2. State your name before you speak for proper identification to the court and for all the parties in your case. Only one person **MUST** speak at a time.

PROHIBITION ON RECORDING: **Do not record the hearing in any way.** Any recording of a court proceeding, *including screen shots, other visual or audio copying* of the hearing, is **prohibited**. Any violation is punishable to the fullest extent under the law, including but not limited to monetary sanctions up to \$1,000, restricted entry to future hearings, or other sanctions deemed appropriate by the court.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ARIANA RENEE HARRIS,

Petitioner

VS.

RAY'NARD TWINE,

Respondent

) Case Number: FPT-26-378864

) Hearing Date: September 3, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER OF CHILD CUSTODY, VISITATION (PARENTING TIME)

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties to this proceeding are Petitioner Ariana Renee Harris (Mother) and Respondent Ray'Nard Twine (Father). The share one minor child: Ray'mello Constant Twine (DOB: 02/23/25).
- 2) On July 1, 2026, Father filed a Request for Order seeking initial child custody and visitation orders. In particular, Father is asking this Court to order joint legal and joint physical custody of the minor child. He is also asking that his parenting time be from Tuesday at 11:00 a.m. until Thursday at 11:00 a.m.
- 3) On July 17, 2026, Mother filed a Declaration in which she states she does not seek to deny visitation to Father.
- 4) On July 28, 2026, Mother filed a formal Responsive Declaration to Father's Request for Order in which she proposes that parenting time for Father be on Fridays from 4:00 p.m. – 9:00 p.m., and on Saturdays from 9:00 a.m. – 9:00 p.m.

1 5) On August 3, 2026, both parties appeared at the “Readiness” hearing and the parties were referred
2 to FCS Mediation to occur on August 13, 2026 and set a return hearing for September 3, 2026.

3 6) On August 25, 2026, Father filed a supplemental declaration, which has been read and considered
4 by the Court.

5 **B. Findings and Order**

6 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
7 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
8 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
9 child(ren) is the United States.

10 2) The parties shall share joint legal custody of the minor child.

11 3) Mother shall have sole physical custody of the minor child.

12 4) Father’s parenting time shall be on Tuesdays from 11:00 a.m. – 5:00 p.m., and on Wednesdays
13 from 11:00 a.m. – 5:00 p.m.

14 5) The Court will prepare the Findings and Order After Hearing.
15
16
17
18
19
20
21
22
23
24
25
26
27
28
29

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

LARS B AMBLE,

Petitioner

VS.

ANTONIA TRIVYZA,

Respondent

) Case Number: FMS-16-386886

) Hearing Date: September 3, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

OTHER REVIEW HEARING

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Lars B Amble (Father) and Respondent Antonia Trivyza (Mother).
They share one minor child: Kai Benjamin Amble (DOB: 09/24/12).
- 2) On October 23, 2025, Father filed a Request for Order seeking modification of custody and visitation and Family Code section 271 sanctions for attorney's fees and costs. Father requests the following orders:
 - a. Sole legal custody;
 - b. Sole physical custody;
 - c. Modification of parenting time such that Mother has parenting time on alternate weekends from Friday to Sunday;
 - d. In the alternative, a custody evaluation or a brief focused assessment to "shed light on the custody arrangement;" and
 - e. \$15,000 in Family Code section 271 sanctions for attorney's fees and costs. See attorney declaration filed October 23, 2025.

- 1 3) On November 14, 2025, Mother filed a Responsive Declaration to Father's October 23, 2025,
2 Request for Order.
- 3 4) On January 16, 2026, Father filed a Reply Declaration, which has been read and considered by
4 the Court.
- 5 5) On January 16, 2026, a Declaration of Erica Whitelaw was filed, which has been read and
6 considered by the Court.
- 7 6) On January 16, 2026, a Declaration of Autumn Teeter was filed, which has been read and
8 considered by the Court.
- 9 7) On January 16, 2026, a Declaration of Hatun Noguera was filed, which has been read and
10 considered by the Court.
- 11 8) On January 29, 2026, the Court issued the following orders:
 - 12 a. Mother and Father shall continue to have joint legal custody.
 - 13 b. Effective immediately, Father shall have sole physical custody.
 - 14 c. Mother's parenting time with the minor child shall be on the 1st, 3rd and 4th weekends of
15 each month from Friday after school until Sunday at 5:00 p.m. Mother shall pick up the
16 minor child after school on Fridays and Mother shall return the minor child to Father on
17 Sundays at 5:00 p.m., with the exchange to take place at the Starbucks located at the
18 intersection of Geary and Masonic in San Francisco, CA. This schedule shall commence
19 on Sunday, February 1, 2026, at 5:00 p.m., with the exchange at Starbucks.
 - 20 d. The Court grants Mother's request for a Tier II.
 - 21 e. The parties shall return to Court on April 16, 2026 to review outcome of the Tier II
22 assessment.
- 23 9) On April 16, 2026, the Court issued the following orders:
 - 24 a. Mother and Father shall continue to have joint legal custody of the minor child.
 - 25 b. Effective immediately, the parties shall share joint physical custody of the minor child.
 - 26 c. Effective immediately, the custodial schedule is altered to be a flexible schedule which
27 permits the minor to spend time at Mother's or Father's home at his own discretion.
28 Should the minor child wish to transfer from one party's home to the other, each parent
29 shall take the steps necessary to facilitate that transfer.

- d. The Court orders that the minor child will begin reconciliation therapy to address the concerns raised by the minor child in the Tier II interview and the minor child's resistance to spending time with Father.
- e. Father shall select the reconciliation therapist, and the selected therapist will work with Father and the minor child. Both parties shall cooperate in full with the therapeutic process as designed by the selected reconciliation therapist, based on his or her determination of the minor child's best interests. Notwithstanding the foregoing, the reconciliation therapist shall discuss with Father when and if it becomes appropriate and/or necessary to integrate Mother in the therapeutic process. That process shall not include Mother directly without Father's prior consent, absent a court order.
- f. Both parties shall ensure that the minor child participates in, including attendance in all appointments that take place on days that the minor child is in that party's custodial care. So, if the minor child is staying with Mother on the day of therapy, it is Mother's responsibility to ensure that the child is present for reconciliation therapy.
- g. Father shall advance the cost of reconciliation therapy and shall share the invoices and payment history with Mother. Mother shall reimburse Father 25% of any therapeutic expense not covered by insurance.
- h. The parties shall return to Court on June 4, 2025, at 9:00 a.m., to confirm that a reconciliation therapist has been selected and therapy has begun.

10) On May 26, 2026, Father filed a "Status Declaration of Petitioner Lars B. Amble for Review Hearing Regarding Modification of Child Custody & Visitation," which has been read and considered by the Court.

11) On June 4, 2026, the Court ordered the following:

- a. All existing orders remain in full force and effect.
- b. Given Father's May 26, 2026 declaration, the Court will continue the review hearing to September 3, 2026, at 9:00 a.m., in Department 403.
- c. Mother shall give the minor child physical and emotional space around the therapy sessions.

d. Both parties shall serve and file an update declaration with the Court no later than 10 days prior to the next hearing, informing the Court of the progress and status of reconciliation therapy.

e. Counsel for Father shall prepare the Findings and Order After Hearing.

12) On August 24, 2026, Mother filed an update declaration with the Court, which has been read and considered.

13) On August 26, 2026, Father filed a status declaration, which has been read and reviewed by the Court.

B. Findings and Order

1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in violation to civil or criminal penalties, or both. The country of habitual residence of the minor child(ren) is the United States.

2) Given the lack of progress, the Court is at a loss on how to proceed. No further action will be taken by the Court, at this time. Father and Mother shall continue to work with the minor child's therapists.

3) All existing orders remain in full force and effect.

4) Counsel for Father shall prepare the Findings and Order After Hearing.

5) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the proposed order after hearing directly to the court. Failure to submit the order after hearing within 10 days may allow the other party to prepare a proposed order and submit it to the court in accordance with CA Rules of Court, Rule 5.125(d).

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

PUNEET SINGH,

Petitioner

VS.

ZOE DEANE,

Respondent

) Case Number: FDI-19-791672

) Hearing Date: September 3, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER FOR CHANGE OF CHANGE OF CHILD CUSTODY, VISITATION
(PARENTING TIME) CHANGE COMMUNICATION AND CONDUCT ORDERS

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Puneet Singh (Father) and Respondent Zoe Deane (Mother). There is one minor child subject to this proceeding: Ari Singh (DOB: 12/05/17).
- 2) On March 5, 2026, Father filed a Request for Order seeking a modification of child custody and visitation (i.e., parenting time) orders. However, his requests seem to be directed towards communication and conduct. He is specifically seeking the following orders:
 - a. That Father shall have final decision-making authority with regard to travel and medical issues;
 - b. Modification of the parenting plan such that Father has Wednesdays and Thursdays and Mother has Mondays and Tuesdays;
 - c. That each parent send no more than one non-urgent email communication per week, to be sent on Fridays;
 - d. That each parent respond by Monday end of day, absent emergency circumstances;

- 1 e. That each parent copy the other parent on communications with third parties concerning
2 significant matters affecting Ari, including medical providers, schools, counselors,
3 mediators, Family Court Services, unless impracticable due to emergency circumstances,
4 and shall promptly forward any written communication received concerning such matter
5 if the other parent was not included;
- 6 f. That neither parent shall appear at the other parent's residence without prior agreement
7 except in emergencies;
- 8 g. That routine custodial transitions shall occur curbside, promptly, and with Ari
9 transitioning directly between households without unnecessary lingering, discussion, or
10 overlap between the parties absent mutual agreement otherwise;
- 11 h. That neither parent shall speak negatively about the other parent to Ari or in any manner
12 reasonably likely to reach Ari; and
- 13 i. That neither parent shall attend social events or extracurricular activities occurring during
14 the other parent's custodial time without prior written agreement, except for school-wide
15 public events where both parents may attend without interference.
- 16 3) On July 10, 2026, Mother filed a Responsive Declaration in which she asks this Court to deny
17 Father's requests.
- 18 4) On July 27, 2026, the parties appeared at Readiness hearing and the Court referred the parties to
19 FCS Mediation to occur on August 25, 2026, and set the matter for formal hearing on September
20 3, 2026.
- 21 5) On August 24, 2026, Father filed a Reply declaration, which has been read and considered by the
22 Court.

23 **B. Findings and Order**

- 24 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
25 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
26 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
27 child is the United States.
- 28 2) Father's request to modify the existing parenting plan is GRANTED. However, the Court will
29 not grant his specific request. Given the allegations raised by both parents, the Court will order

1 the new parenting plan on a week on/week off basis. Exchanges shall occur every Sunday at 6:00
2 p.m. Receiving parent shall pick up the minor child from the other parent's home. Mother's first
3 week will commence on Sunday, September 6, 2026. Father's week will then commence the
4 following Sunday, September 13, 2026. They shall rotate each week thereafter.

5 3) The Court DENIES Father's request to modify the existing Holiday schedule. Any existing
6 orders related to Holidays and breaks shall supersede the week on/week off schedule.

7 4) In all other respects, Father's additional requests are all DENIED. They are not in the child's best
8 interest and frankly seem extremely controlling and coercive. Should Father continue to make
9 such unreasonable requests, the Court will consider such requests as not in the child's best
10 interest. He and Mother shall work together in making decisions for the benefit of the minor
11 child. If they are unable to work together, the Court will consider ordering them to participate in
12 "in person, joint, co-parent counseling" for up to 15 sessions. These issues are clearly about the
13 parents' lack of ability to communicate and work together, which is not in their child's best-
14 interest.

15 5) All existing orders, not in conflict with the orders made herein, shall remain in full force and
16 effect.

17 6) The Court will prepare the Findings and Order After Hearing.
18
19
20
21
22
23
24
25
26
27
28
29

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

MICHELLE K DIAMOND,

Petitioner

VS.

LEE S DIAMOND,

Respondent

) Case Number: FDI-21-795339

) Hearing Date: September 3, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER RE AMEND 4/7/26 FINDINGS AND ORDER TO COMPORT WITH
COURT ORDER; REQUEST FOR ORDER RE: DIVISION OF PERSONAL PROPERTY IN FAMILY
RESIDENCE; REQUEST FOR ORDER FOR ENFORCEMENT OF SANCTIONS ORDER

TENTATIVE RULING

**The parties are ordered to appear. The parties may appear in person in Dept. 403 or remotely by
Zoom video. If a party chooses to appear by video, that party must abide by the Notice and
Instructions for Remote Appearances in San Francisco Family Court set forth above.**

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

LOGAN MCGRATH,

Petitioner

VS.

COREY BLANCHETTE,

Respondent

) Case Number: FDI-24-800262

) Hearing Date: September 3, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

ORDER TO SHOW CAUSE AND AFFIDAVIT FOR CONTEMPT

TENTATIVE RULING

The parties are ordered to appear. The parties may appear in person in Dept. 403 or remotely by Zoom video. If a party chooses to appear by video, that party must abide by the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth above.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

AMY DAYNA ODESSKY,

Petitioner

VS.

ADAM ODESSKY,

Respondent

) Case Number: FDI-25-800786

) Hearing Date: September 3, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER RE SPOUSAL OR PARTNER SUPPORT, CHILD SUPPORT

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Amy Dayna Odessky (Mother) and Respondent Adam Odessky (Father). They share three minor children: Alyssa (DOB: 2/26/14), Julian (DOB: 2/26/14), and Aubrey (DOB: 1/28/20).
- 2) Per the Petition for Dissolution and Response and Request for Dissolution, the parties were married on 10/26/12 and separated on 8/10/24 for a marriage of eleven years and nine months.
- 3) On 6/26/26, Father filed a Request for Order seeking modification of the 8/5/25 Stipulation and Order, which provides for Father to pay \$2,400 in monthly child support and \$4,000 in monthly spousal support, effective 8/1/26. Father states he was laid off from his job as of 6/4/26 and seeks modification of support, effective 8/1/26 (pursuant to the Stipulation and Order filed 8/5/25). Attached as Exhibit B is a letter and notice regarding termination of Father's benefits and a Notice to Employee as to Change in Relationship.
- 4) On 6/26/26, Father filed an Income and Expense Declaration indicating he is unemployed as of 6/5/26.

- 1 5) On 7/17/26, the parties filed a Stipulation and Order agreeing to continue the matter from 8/27/26
2 to 9/3/26.
- 3 6) On 7/27/26, Mother filed a Request for Order seeking \$15,000 in Family Code section 2030
4 attorney's fees and costs to conduct limited and focused discovery into Father's current financial
5 condition and finalize property division for global resolution. This matter is on for hearing on
6 9/17/26 at 9 AM in Dept. 403.
- 7 7) On 7/27/26, Mother filed an Income and Expense Declaration indicating she has been
8 unemployed since 2012.
- 9 8) On 7/27/26, counsel for Mother filed a declaration in support of her request for \$15,000 in Family
10 Code section 2030 attorney's fees and costs.
- 11 9) On 8/21/26, Mother filed a Responsive Declaration in opposition to Father's 6/26/26 Request for
12 Order. Mother states that pursuant to the 8/5/25 Stipulation and Order Father pays her \$6,400 per
13 month (\$2,400 in below-guideline child support and \$4,000 in temporary spousal support minus
14 \$2,505 per month in fair market rental value of the parties' home where Mother resides). Mother
15 states Father also deducts the cost of her car insurance, which varies monthly; therefore, Mother
16 receives approximately \$3,711 total per month. Mother asserts that Father's Income and Expense
17 Declaration contains the following, plus additional, inaccuracies: item 5.a reports salary of \$0 as
18 Father's average monthly figure for the last 12 months with no attached paystubs, item 8, which
19 asks about one-time money received in the last twelve months, is blank though Father reported
20 receiving severance equal to roughly two months of pay, item 5.j, unemployment compensation,
21 is blank though Father reported receiving unemployment, and item 11 reports much less in real
22 and other property than the equity on the parties' home. Mother asserts that both sides are
23 conducting relevant financial discovery with responses due at the end of August and requests the
24 Court continue the hearing to a date in early November.
- 25 10) Father did not file a Reply Declaration.

26 **B. Findings and Order**

- 27 1) Mother's request to continue Father's Request for Order filed 6/26/26 (seeking modification of
28 support) and Mother's Request for Order filed 7/27/26 (seeking Family Code section 2030
29

1 attorney's fees and costs is GRANTED. Both matters are hereby **CONTINUED to 11/5/26 at 9**
2 **AM in Dept. 403.**

- 3 2) The Court is concerned that Father provided incomplete information in support of his Request for
4 Order filed 6/26/26 (seeking modification of support). Father shall file and serve a current,
5 completed Income and Expense Declaration – with all required attachments – and an update
6 declaration briefing the Court on whether he received severance pay and is receiving
7 unemployment compensation. The documentary evidence attached as Exhibit B to Father's
8 6/26/26 Request for Order appears incomplete.
- 9 3) The 8/5/25 child and spousal support order shall remain in full force and effect.
- 10 4) Mother's request for an order that Father serve verified responses and produce all documents
11 responsive to Mother's Demand for Production of Documents, Set Two on or before a date in
12 advance of the continuance is beyond the scope of this hearing pursuant to Family Code section
13 213.
- 14 5) Counsel for Mother shall prepare the Findings and Order After Hearing.
- 15 6) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
16 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
17 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
18 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
19 proposed order after hearing directly to the court. Failure to submit the order after hearing within
20 10 days may allow the other party to prepare a proposed order and submit it to the court in
21 accordance with CA Rules of Court, Rule 5.125(d).
- 22
23
24
25
26
27
28
29

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

GEORGE PERRY,

Petitioner

VS.

EMELIE TORRES-ESLABON PERRY,

Respondent

) Case Number: FDI-25-801464

) Hearing Date: September 3, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER RE BIFURCATION AND TAX FILING

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner George Perry and Respondent Emelie Torres-Eslabon Perry.
- 2) On 7/15/26, Petitioner filed a Request for Order seeking determination of the date of separation (as 2/17/25) and a court order requiring the parties to jointly file their 2025 tax returns.
- 3) On 8/21/26, Respondent filed a Responsive Declaration disputing the date of separation (Respondent contends the date of separation is 6/11/25) and agreeing to jointly file 2025 tax returns.

B. Findings and Order

- 1) The Court finds there are material facts in dispute regarding the date of separation. The Court therefore reserves jurisdiction over Petitioner's request for determination of the date of separation to trial. Either party may request to bifurcate trial on the issue of the date of separation if resolution is likely to simplify other issues. See California Rules of Court, rule 5.390.
- 2) The Court finds Petitioner's request for an order requiring the parties to jointly file their 2025 tax returns is MOOT as Respondent agrees to do so.

1 3) Counsel for Petitioner shall prepare the Findings and Order After Hearing.

2 4) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
3 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
4 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
5 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
6 proposed order after hearing directly to the court. Failure to submit the order after hearing within
7 10 days may allow the other party to prepare a proposed order and submit it to the court in
8 accordance with CA Rules of Court, Rule 5.125(d).

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

JESUS OJEDA (TORRES),

Petitioner

VS.

MARIA LUCINA OJEDA,

Respondent

) Case Number: FDI-25-801588

) Hearing Date: September 3, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER FOR SPOUSAL SUPPORT

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Jesus Ojeda (Torres) and Respondent Maria Lucinda Ojeda. They share no minor children.
- 2) On 6/24/25, Petitioner filed a Petition for Dissolution indicating the date of marriage is 8/1/13 and date of separation is 1/18/25 for a marriage of 11 years and 5 months.
- 3) On 2/23/26, Respondent filed a Response and Request for Dissolution indicating the date of marriage is 8/1/13 and date of separation is 1/18/25 for a marriage of 11 years and 5 months.
- 4) On 7/10/26, Respondent filed a Request for Order seeking guideline temporary monthly spousal support. Respondent estimates Petitioner's income is \$7,160 per month based on Petitioner's 2023 tax return (attached as Exhibit 1).
- 5) On 7/16/26, Respondent filed an Income and Expense Declaration indicating she earns \$3,946 in average monthly income, pays \$48 in required monthly union dues, has \$200 in cash assets, and pays \$2,123 in average monthly expenses.

6) On 7/21/26, Respondent filed a Proof of Service by Mail indicating counsel for Petitioner was served the Request for Order on 7/1/26. The Court notes there is no indication that Respondent served her Income and Expense Declaration or a copy of the Tentative Ruling Instructions.

7) Petitioner did not file a Responsive Declaration.

8) The Court also notes that counsel for Petitioner filed a Notice of Unavailability of Counsel from 6/10/26 – 8/10/26.

B. Findings and Order

1) The Court finds good cause to **CONTINUE Respondent's Request for Order filed 7/10/26 to 10/27/26 at 9 AM in Dept. 403** to ensure proper service was effectuated as there is no indication that Respondent served her Income and Expense Declaration or a copy of the Tentative Ruling Instructions on Petitioner.

2) At least 16 Court days prior to the next hearing date, Respondent shall serve on Petitioner the (a) Request for Order, (b) Income and Expense Declaration, (c) Continuance Order contained herein, and (d) Tentative Ruling Instructions using a service method authorized by the Code of Civil Procedure.

3) At least 9 Court days prior to the next hearing date, Petitioner may file and serve a Responsive Declaration and shall file and serve an Income and Expense Declaration (form FL-150), which is a mandatory form.

4) At least 5 Court days prior to the next hearing date, Respondent may file and serve a Reply Declaration.

5) Should Petitioner fail to file an Income and Expense Declaration (form FL-150) as ordered herein, the Court will use Respondent's estimation of Petitioner's monthly income (\$7,160 per month) to calculate guideline monthly spousal support, which Respondent presented to the Court under penalty of perjury.

6) The Court will prepare the Findings and Order After Hearing.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

EDWARD DELESKI,

Petitioner

VS.

CONNOR MCLEOD,

Respondent

) Case Number: FDI-26-802818

) Hearing Date: September 3, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER RE SPOUSAL OR PARTNER SUPPORT, ATTORNEY FEES AND COSTS

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Edward Deleski and Respondent Connor Mcleod. They share no minor children.
- 2) On 4/2/26, Petitioner filed a Petition for Dissolution indicating the date of marriage is 8/22/15 and date of separation is 3/26/26 for a marriage of 10 years and 7 months.
- 3) On 6/1/26, Respondent filed a Response and Request for Dissolution indicating the date of marriage is 8/22/14 and date of separation is 3/26/26 for a marriage of 11 years and 7 months.
- 4) On 7/9/26, Respondent filed a Request for Order seeking \$13,404 in guideline temporary monthly spousal support and \$45,000 in Family Code section 2030 attorney's fees and costs. Respondent attaches as Exhibit B a proposed XSpouse calculation and requests the Court calculate temporary support on the average of Petitioner's monthly earnings for the past 5 years, or \$54,600 per month. Respondent asserts that there is a significant disparity in income and access to funds as Petitioner earns income from a real estate business and reports total assets of approximately

1 \$9,080,495, including large cash accounts, retirement assets, brokerage accounts, multiple real
2 estate holdings, and other assets.

3 5) On 7/9/26, Respondent filed an Income and Expense Declaration indicating he is unemployed,
4 has \$20,000 in cash assets, has \$12,317 in easily saleable funds, and pays \$15,048.97 in average
5 monthly expenses.

6 6) On 7/9/26, counsel for Respondent filed a declaration substantiating Respondent's request for
7 \$45,000 in Family Code section 2030 attorney's fees and costs.

8 7) On 7/31/26, Respondent refiled his Income and Expense Declaration.

9 8) On 8/17/26, Respondent filed a Proof of Electronic Service indicating service (of the Request for
10 Order, declaration of counsel, Tentative Ruling Instructions, and a blank Responsive Declaration)
11 was effectuated by email on 7/22/26. The Court notes there is no indication whether
12 Respondent's Income and Expense Declaration was served.

13 9) Petitioner did not file a Responsive Declaration.

14 **B. Findings and Order**

15 1) Respondent's unopposed request for Family Code section 2030 attorney's fees is GRANTED in
16 the amount of \$25,000. The Court finds an award of attorney's fees and costs is appropriate here
17 because there is a demonstrated disparity between the parties in access to funds to retain or
18 maintain counsel and in the ability to pay for legal representation.

19 2) The Court further finds, based on Respondent's assertion of Petitioner's average monthly income
20 and assets, which Respondent presented under penalty of perjury, Petitioner is reasonably likely
21 to have the ability to pay for legal representation for both parties.

22 3) Finally, \$25,000 in attorney's fees and costs are reasonable and necessary.

23 4) Petitioner shall pay this balance in full by 10/3/26.

24 5) Respondent's request for guideline monthly spousal support is **CONTINUED to 11/10/26 at 9**
25 **AM in Dept. 403** as Petitioner must file mandatory form FL-150 (Income and Expense
26 Declaration).

27 6) At least 9 Court days prior to the next hearing date, Petitioner may file and serve a Responsive
28 Declaration and shall file and serve an Income and Expense Declaration.

1 7) At least 5 Court days prior to the next hearing date, Respondent may file and serve a Reply
2 Declaration.

3 8) Should Petitioner fail to file an Income and Expense Declaration as ordered herein, the Court will
4 use Respondent's estimation of Petitioner's monthly income (\$54,600 per month) to calculate
5 guideline monthly spousal support.

6 9) Counsel for Respondent shall prepare the Findings and Order After Hearing.

7 10) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
8 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
9 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
10 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
11 proposed order after hearing directly to the court. Failure to submit the order after hearing within
12 10 days may allow the other party to prepare a proposed order and submit it to the court in
13 accordance with CA Rules of Court, Rule 5.125(d).